

HOUSE No. 4585

The Commonwealth of Massachusetts

PRESENTED BY:

Paul K. Frost

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act authorizing the town of Auburn to offer expanded senior property tax abatements.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>9/24/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>9/24/2025</i>

HOUSE No. 4585

By Representative Frost of Auburn, a petition (accompanied by bill, House, No. 4585) of Paul K. Frost and Michael O. Moore (by vote of the town) that the town of Auburn be authorized to offer expanded senior property tax abatements in said town. Revenue. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act authorizing the town of Auburn to offer expanded senior property tax abatements.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding clause 41C of section 5 of chapter 59 or any other general
2 or special law to the contrary, with respect to real property in the Town of Auburn the following
3 factors determining exemption for real property under clause 41C of section 5 of chapter 59 shall
4 be adjusted as follows:

5 (1) increasing the sum of \$500 contained in the first sentence of clause 41C to \$1,500; (2)
6 adding the following at the end of the seventh sentence "or for a person who has reached his
7 seventieth birthday prior to the fiscal year for which an exemption is sought who owns the same
8 jointly or as a tenant in common with their child who is under the age of seventy and occupied
9 by him as his domicile;"; (3) increasing the amounts contained in subclause (B) of said first
10 sentence whenever they appear in said subclause from \$13,000 dollars and from \$15,000 dollars
11 to fifty percent of Area Median Income as adjusted for household size, as is published annually
12 by the U.S. Department of Housing and Urban Development, as required by Section 8 of the

13 Federal Housing Act of 1937 (42 USC Section 1437t), as amended, and the relevant year of the
14 calculation shall be the most recent figure available as of July 1 of the start of the fiscal year to
15 which the exemption is sought; and (4) increasing the amounts contained in subclause (C) of said
16 first sentence whenever they appear in said subclause from \$28,000 dollars to not more than
17 \$80,000 and from \$30,000 to not more than \$110,000. These adjustments shall not be further
18 modified by the second sentence of clause 41C of section 5 of chapter 59.

19 SECTION 2. The provisions of this act are severable and if any provision, or portion
20 thereof, should be held to be unconstitutional or otherwise invalid by any court of competent
21 jurisdiction, such unconstitutionality or invalidity shall not affect the remaining provisions,
22 which remain in full force and effect.

23 SECTION 3. This act shall take effect upon its passage.